

2:00 PM

LINE 1

21-CIV-04299

LORI WILLIAMS, ET AL. VS. BAYWOOD CAPITAL CORPORATION, ET AL.

LORI WILLIAMS
BAYWOOD CAPITAL CORPORATION

PRO SE
DAVID J. STREZA

DEFENDANT BAYWOOD CAPITAL CORPORATION'S MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED AS TO PLAINTIFF LORI WILLIAMS; REQUEST FOR SANCTIONS

TENTATIVE RULING:

On June 16, 2026, defendants Baywood Capital Corporation filed this motion. On July 28, 2026, at the case management/trial setting conference, with the parties' agreement, the hearing was advanced to August 4, 2026. If the motion had not been advanced, the trial could not have been set within five-years as all parties agreed that there had been no tolling.

The court GRANTS defendant Baywood Capital Corporations motion for an order deeming Defendant's Requests for Admission, Set Three, to plaintiff Lori Williams (RFA).

On May 5, 2026, defendant served the RFA on Lori Williams and no responses have been received or extensions granted. (Babajanov Decl., ¶¶ 2-4.) If there are no responses, there are no time limits to bring a motion and there is no need to informally resolve the dispute. (*Cal. Prac. Guide Civ. Pro. Before Trial*, §§ 8:1371, 8:1372 (TRG June 2026 update).)

Lori Williams has filed an opposition to the motion, but she provides no evidence that she has responded to the requests for admissions. She claims that the motion is untimely, but as stated above, there is no time limit when there are no responses. The motion was brought less than a month after responses were due. She does not show any bad faith or defendant acting in a scandalous manner. The complaint contains nine causes of action with numerous factual claims. Defendants are allowed to conduct discovery about each of the claims and defense counsel submitted a declaration for the additional requests when serving the discovery.

Discovery sanctions are mandatory when there is no response. (Code Civ. Proc., § 2033.280, subd. (c).) Thus, the court grants discovery sanctions in the amount of \$250.00 as a reasonable amount. Since defendant filed the same motion against each of the plaintiffs, the court finds that sanctions of \$250.00 against each plaintiff is reasonable.

The parties shall APPEAR. Zoom appearances are allowed. The court wants to discuss the impact that the ruling has on the trial.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the

ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order shall attach the requests for admissions.

2:00 PM

LINE 2

21-CIV-04299

LORI WILLIAMS, ET AL. VS. BAYWOOD CAPITAL CORPORATION, ET AL.

LORI WILLIAMS
BAYWOOD CAPITAL CORPORATION

PRO SE
DAVID J. STREZA

DEFENDANT BAYWOOD CAPITAL CORPORATION'S MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED AS TO PLAINTIFF CLARENCE WILLIAMS; REQUEST FOR SANCTIONS

TENTATIVE RULING:

On June 16, 2026, defendants Baywood Capital Corporation filed this motion. On July 28, 2026, at the case management/trial setting conference, with the parties' agreement, the hearing was advanced to August 4, 2026. If the motion had not been advanced, the trial could not have been set within five-years as all parties agreed that there had been no tolling.

The court GRANTS defendant Baywood Capital Corporations motion for an order deeming Defendant's Requests for Admission, Set Three, to plaintiff Clarence Williams (RFA).

The court notes that the memorandum of points and authorities is not signed. The defect is curable and defendant is to file and serve a signed memorandum of points and authorities by August 6, 2026. (*Walton v. Victor Valley Community College Dist.* (2026) 119 Cal.App.5th 1164, 1170, as modified on denial of reh'g (Apr. 14, 2026), review denied (Jul. 22, 2026).)

On May 5, 2026, defendant served the RFA on Clarence Williams and no responses have been received or extensions granted. (Babajanov Decl., ¶¶ 2-4.) If there are no responses, there are no time limits to bring a motion and there is no need to informally resolve the dispute. (*Cal. Prac. Guide Civ. Pro. Before Trial*, §§ 8:1371, 8:1372 (TRG June 2026 update).)

Discovery sanctions are mandatory when there is no response. (Code Civ. Proc., § 2033.280, subd. (c).) Thus, the court grants discovery sanctions in the amount of \$250.00 as a reasonable amount. Since defendant filed the same motion against each of the plaintiffs, the court finds that sanctions of \$250.00 against each plaintiff is reasonable.

The parties shall APPEAR. Zoom appearances are allowed. The court wants to discuss the impact that the ruling has on the trial.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order shall attach the requests for admissions.
